

Jameel Ahmad v. Madhyanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 27 May 2022 · Writ-C No. 11091 of 2022 · **Writ disposed; petitioner relegated to a clause 6.8 objection with stay of coercive recovery.**

HEADNOTE

A consumer's writ seeking quashing of a recovery certificate was disposed of without merits examination after the distribution licensee stated that an objection to the demand would be decided in a time-bound manner. Liberty was granted to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, with coercive action stayed pending that process.

FACTUAL SUMMARY

Jameel Ahmad invoked the writ jurisdiction of the Allahabad High Court to quash a recovery certificate dated 31 January 2022 issued by Madhyanchal Vidyut Vitran Nigam Limited, and for a mandamus calling for the records. The distribution licensee, through counsel and on instructions, stated that the petitioner could file an objection against the impugned demand and that the objection would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause-6.8-objection-as-alternate-remedy

HOLDING

Without expressing any opinion on the merits, the Court disposed of the writ with liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks. If so filed, the objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined to examine the recovery certificate on merits and sent the consumer to the paragraph 6.8 objection before the licensee. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The 6.8 objection, if filed within four weeks, was directed to be decided after hearing within the following four weeks, with coercive recovery stayed for eight weeks or until that disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 31 JANUARY 2022

The Court expressly declined to express any opinion on the merits. ¶ 4